JEFEAT CHAGANDA

AND

NATIONAL PROSECUTING AUTHORITY

AND

OFFICER IN CHARGE ZIMBABWE PRISONS

AND CORRECTIONAL SERVICES KHAMI

IN THE HIGH COURT OF ZIMBABWE
NDUNA J
BULAWAYO 7 AUGUST 2025

Urgent Chamber Application

Mr T Tavengwa for the Applicant
Ms N Ndlovu and Mr K Shava for first Respondent

NDUNA J: The matter before the court concerns an application for *habeas corpus* brought in terms of section 50(7) of the Constitution of Zimbabwe, coupled with a prayer for a permanent stay of prosecution. The applicant is charged with obstructing the course of justice under CRB 108/22, though reference was also made to previous proceedings under CRB 118/18 and CRB 112/20.

FACTUAL BACKGROUND

The dispute centers on the applicant's detention following a series of criminal proceedings under three different case numbers CRB 118/18, CRB 112/20, and CRB 108/22, the last of which concerns the offence of obstructing the course of justice. The applicant seeks *habeas corpus* relief in terms of section 50(7) of the Constitution, arguing that his continued incarceration is unlawful

for want of a valid remand order, warrant of committal, or other statutory basis under section 70(1) of the Prisons and Correctional Services Act [*Chapter 7:11*].

With respect to CRB 118/18, the applicant, through counsel *Mr. Tavengwa*, submitted that the proceedings had been quashed and set aside, leaving no operative remand date or detention order. He argued that any order under this record was nullified along with the proceedings themselves, and therefore could not lawfully sustain the applicant's present detention. The State, represented by *Mr. Shava*, took a different view. It relied on this order, contending that it remanded the applicant in custody until the allegations were finalised, and that these allegations remain extant notwithstanding the quashing of the proceedings.

Turning to CRB 112/20, the applicant asserted that he had never been charged under this record. No remand date was ever fixed, nor was any detention order issued. He maintained that this CRB cannot be used to justify his incarceration. The State did not address CRB 112/20 in detail, focusing instead on the general proposition that the underlying allegations against the applicant persist and must be prosecuted.

In CRB 108/22, in which the applicant is charged with obstructing the course of justice. *Mr. Tavengwa* argued that these proceedings, too, had been quashed and set aside, rendering void the warrant of arrest issued. After the applicant failed to appear in court on 27 June 2023. He maintained that no remand order exists under this record and that the State had conceded no indictment had been served in compliance with section 137 of the Criminal Procedure and Evidence Act. While a default inquiry before another Judge in the same case number which was triggered by the warrant issued still on 108/2.Counsel emphasised that the inquiry remains incomplete and has not resulted in an order for detention. He relied on section 38 of the CPEA to

argue that a warrant of arrest ceases to have effect once executed, as in this case when the applicant was brought before a judicial officer.

In contrast, the State argued that the allegations in CRB 108/22 remain live despite the procedural setting aside of the earlier proceedings. It submitted that the warrant issued arose from the applicant's willful default and that the default inquiry is still pending. *Mr. Shava* also highlighted the applicant's history of absconding first for over a year, and again from 27 June 2024 as justification for continued detention.

On the Supreme Court proceedings cited by the applicant, *Mr. Tavengwa* argued that his client was entitled to the benefit of the Supreme Court decision that nullified certain proceedings. The State rejected this, maintaining that the applicant had not been a party to the Supreme Court matter and could not rely on it.

APPLICATION OF THE LAW

In Paragraph 15 of the applicant's founding affidavit he states that the trial under HC 108/22, the proceedings were quashed in accordance with section 8 of the High Court Act. It is thus clear that this application has been brought about due to the events that occurred on the 30th of July 2025 where the trial was ordered *de novo*. I will solely focus on the proceedings of HC108/22. Section 8 of the High court act states

Incapacity of assessor in criminal trial

> (1) If at any time during a criminal trial in the High Court one of the assessors dies or becomes, in the opinion of the judge, incapable of continuing to act as assessor, the judge may, if he thinks fit, with the consent of the accused and the prosecutor, direct that the trial shall proceed without that assessor.

> (2) Where the trial proceeds in pursuance of a direction given in terms of subsection (1), the decision of the court shall be unanimous.
>
> (3) If, in the circumstances referred to in subsection (1)—
>
> (*a*) the judge does not, in terms of that subsection, direct that the trial shall proceed without the assessor referred to in that subsection; or
>
> (*b*) the court is unable, as required by subsection (2), to agree on a decision on any charge in the indictment; the accused, unless already on bail, shall remain in custody and may be tried again: Provided that a judge of the High Court may, in terms of Part IX of the Criminal Procedure and Evidence Act [*Chapter 9:07*], release the accused on bail.

Section 8 of the High Court Act [*Chapter 7:06*] is clear in its wording. Subsection (3)(b) provides that where a trial cannot proceed and the court cannot reach a unanimous decision, "the accused, unless already on bail, shall remain in custody and may be tried again." The use of the word "shall" is peremptory, leaving no discretion to release an accused except via a separate bail process. The provision does not extinguish the charges against an accused; it merely addresses the procedural consequence of an assessor's incapacity.

In the present case, the trial was ordered *de novo* not because the prosecution's case was defective, but because the court sought to cure a procedural irregularity namely, the absence of a second assessor. The charges themselves remain extant, and the matter is actively set down for hearing on 3 November 2025. The applicant's refusal to sign the new indictment does not invalidate the indictment nor does it terminate the prosecution. The applicant's reliance on section 70 of the Correctional Service Act is therefore misplaced.

Although not directly before the court in this application, section 8(3)(b) of the High Court Act expressly provides that where a trial is unable to continue, the accused shall remain in custody unless on bail, with the only alternative being a bail application under Part IX of the Criminal

Procedure and Evidence Act. Section 117(2) of the CPEA [*Chapter 9:07*] outlines compelling reasons to deny bail, where it provides

> (i) where there is a likelihood that if released on bail, an accused person would endanger the safety of the public or any particular person that he would commit an offence referred to in the first schedule,
>
> (ii) where there is a likelihood that the accused person will not stand his or her trial or appear to receive sentence,
>
> (iii) where there is a likelihood that the accused person will attempt to influence or intimidate witnesses or to conceal or destroy evidence.
>
> (iv) where there is a likelihood that the accused person will undermine or jeopardise the objectives Of proper functioning of the criminal justice system, including the bail system,
>
> (v) in exceptional circumstances where there is a likelihood that the release of the accused person will result in the disturbance of public peace or security.

Section 117(2) of the Criminal Procedure and Evidence Act *[Chapter 9:07]* provides the framework for the denial of bail where there is a likelihood of abscondment, interference with witnesses, or the jeopardising of the criminal justice process. The applicant has already demonstrated that he is not a suitable candidate for bail. Annexure B, at page 7 of the State's Heads of Argument, reflects a previous instance in which bail was revoked against the applicant. It further alludes to another instance of abscondment which resulted in the revocation of bail, thereby evidencing a significant risk of non-appearance.

The applicant's submission that the default inquiry is still pending, and that there is therefore no case against him, is misleading. In fact, as long as the matter has not been determined, it remains an outstanding case before the court.

DISPOSITION

In light of the foregoing, I find that the quashing of the proceedings in HC 108/22 did not extinguish the charges against the applicant. The matter was properly ordered *de novo* to ensure compliance with procedural requirements, and the charges remain valid. The applicant's continued detention is consistent with section 8(3)(b) of the High Court Act, which mandates that an accused remain in custody unless granted bail.

Given the applicant's history of abscondment, there are compelling reasons to believe he is not a suitable candidate for bail under section 117(2) of the CPEA. The reliance on section 71 of the Correctional Service Act is without merit in the present context.

Accordingly, the application cannot succeed.

ORDER

1. Application is hereby dismissed
2. The first respondent is ordered to indict the applicant again for the 3rd of November 2025.

Mutuso, Taruvinga & Mhiribidi Attorneys applicant's legal practitioners
National Prosecuting Authority 1st respondent's legal practitioners